

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER			PAGE 1 OF		
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME		b. TELEPHONE NUMBER (<i>No collect calls</i>)
			8. OFFER DUE DATE/ LOCAL TIME		
9. ISSUED BY CODE			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED ☐ VETERAN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ SERVICE-DISABLED ☐ 8(A) ☐ SDVOSB		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE	12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) ☐		13b. RATING 14. METHOD OF SOLICITATION REQUEST ☐ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ FOR PROPOSAL (RFP)
15. DELIVER TO CODE			16. ADMINISTERED BY CODE		
17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			18a. PAYMENT WILL BE MADE BY CODE		
TELEPHONE NUMBER ☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE
(Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (<i>For Government Use Only</i>)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED ☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED					
29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:					
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (<i>SIGNATURE OF CONTRACTING OFFICER</i>)		
30b. NAME AND TITLE OF SIGNER (<i>Type or print</i>)	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (<i>Type or print</i>)		31c. DATE SIGNED	

Solicitation/Contract Form Continuation

Data-encrypted Autonomous In-situ Subsurface Profiling Systems

Note: The Ordering period is TBD as the anticipated started date is 09/23/2026; however, the ordering period may begin sooner.

THE FOLLOWING NAVSUP LOCAL TEXT IS HEREBY MADE PART OF THE STATEMENT OF WORK /PERFORMANCE WORK STATEMENT.

NAVSUP FLC Norfolk may utilize contractor support through the AbilityOne Program, as needed, to perform contract closeout functions for this acquisition. Information, including business sensitive/confidential or proprietary data, that the offeror provides to the Government or information already in the possession of the Government may be viewed and utilized by the AbilityOne Program support contractor personnel during the course of its contract performance. The information that may be made available to the support contractor may include, for example, pricing and technical proposals, historical contract, pricing and performance information, Commercial Asset Visibility (CAV) reporting information and similar data/information.

By submission of a proposal in response to this solicitation, the offeror and its subcontractors consent to a release of their business sensitive/confidential or proprietary data to the Government's AbilityOne Program support contractor personnel in order to perform close out services. Prior to the release of any such information to the support contractor, the support contractor will have in place with the Government a Non-Disclosure/Non-Use Agreement in accordance with the terms of the AbilityOne Program support contract.

Offerors may execute their own Non-Disclosure Agreement with the AbilityOne Program (AbilityOne contact information available from the contracting point of contact). The support contractor must provide copies of the executed agreements to the Contracting Officer and the Contracting Officer's Representative (COR) for the support contract; and the offeror/contractor for this acquisition must provide copies of the executed Agreement to the Contracting Officer for this acquisition. If the offeror/contractor seeks such a Non-Disclosure Agreement with the AbilityOne Program support contractor, the Agreement must be executed no later than the date of final delivery under the resulting NAVSUP FLC Norfolk contract.

THE FOLLOWING NAVSUP LOCAL TEXT IS HEREBY MADE PART OF THE STATEMENT OF WORK /PERFORMANCE WORK STATEMENT. EXPEDITING CONTRACT CLOSEOUT

(a) As part of the negotiated fixed price or total estimated amount of this contract, both the Government and the Contractor have agreed to waive any entitlement that otherwise might accrue to either party in any residual dollar amount of \$1,000 or less at the time of final contract closeout. The term "residual dollar amount" shall include all money that would otherwise be owed to either party at the end of the contract, except that, amounts connected in any way with taxation, allegations of fraud and/or antitrust violations shall be excluded. For purposes of determining residual dollar amounts, offsets of money owed by one party against money that would otherwise be paid by that party may be considered to the extent permitted by law.

(b) This agreement to waive entitlement to residual dollar amounts has been considered by both parties. It is agreed that the administrative costs for either party associated with collecting such small dollar amounts could exceed the amount to be recovered.

THE FOLLOWING NAVSUP LOCAL TEXT IS HEREBY MADE PART OF THE STATEMENT OF WORK /PERFORMANCE WORK STATEMENT.

AUTHORIZED CHANGES ONLY BY THE CONTRACTING OFFICER

(a) Except as specified in paragraph (b) below, no order, statement, or conduct of Government personnel who

visit the Contractor's facilities or in any other manner communicate with Contractor personnel during the performance of this contract shall constitute a change under the "Changes" clause of this contract.

(b) The Contractor shall not comply with any order, direction or request of Government personnel unless it is issued in writing and signed by the Contracting Officer, or is pursuant to specific authority otherwise included as a part of this contract.

(c) The Contracting Officer is the only person authorized to approve changes in any of the requirements of this contract and notwithstanding provisions contained elsewhere in this contract, the said authority remains solely with the Contracting Officer. In the event the Contractor effects any change at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in charges incurred as a result thereof. The address and telephone number of the Contracting Officer is:

NAME: Joseph Caltagirone

ADDRESS: 700 Robbins Avenue - Building 2B, Philadelphia, PA 19111-5083

TELEPHONE: (564) 226-0669

DURATION OF CONTRACT PERIOD (SEP 2015)

(a) This contract shall become effective on the date of award, and the ordering period shall continue in effect during the period ending 36 months after date of contract unless terminated in accordance with other provisions herein. Performance under task orders issued under this contract may begin on or after the effective date of the contract and may continue in effect during the period ending 365 days after the last day of the ordering period.

(b) Notwithstanding the above, the Contracting Officer may extend the contract ordering period to accommodate the issuance of task orders in order to fully utilize the quantity of services as specified within the attached pricing spreadsheet.

COMMUNICATIONS DURING THE LIFE OF THE CONTRACT (SEP 2015)

(a) Except as specified in paragraph (b) below, no order, statement, or conduct of Government personnel who visit the Contractor's facilities or in any other manner communicates with Contractor personnel during the performance of this contract shall constitute a change under the "Changes" clause of this contract.

(b) The Contractor shall not comply with any order, direction or request of Government personnel unless it is issued in writing and signed by the Contracting Officer, or is pursuant to specific authority otherwise included as a part of this contract.

(c) The Contracting Officer is the only person authorized to approve changes in any of the requirements of this contract and, notwithstanding provisions contained elsewhere in this contract, the said authority remains solely the Contracting Officer's. In the event the contractor effects any change at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in charges incurred as a result thereof. The address and telephone number of the Principal Contracting Officer is:

NAME: Joseph Caltagirone

ADDRESS: 700 Robbins Avenue - Building 2B, Philadelphia, PA 19111-5083

TELEPHONE: (564) 226-0669

MINIMUM AND MAXIMUM QUANTITIES (FFP, MULTIPLE AWARD IDIQ) (SEP 2015)

This contract is one of a set of Multiple Award Contracts (MAC). As referred to in paragraph (b) of the

"Indefinite Quantity" clause of this contracts, each MAC contract has a total contract minimum quantity of \$10,000.00 worth of orders. The contract maximum for this individual contract is a total of the amount specified within Section B, Schedule of Services.

CONTRACT CEILING

The ceiling for this contract is \$51,136,250.00. (CLIN 0001 ceiling - \$25,568,125.00 and CLIN 0002 ceiling - \$25,568,125.00)

APPOINTMENT OF CONTRACTING OFFICER'S REPRESENTATIVE (SEP 2015)

(a) The Contracting Officer hereby designates the following individual as Contracting Officer's Representative (s) (COR) for this contract:

Name: TBD

Address:

Phone:

(b) In the absence of the COR named above, all responsibilities and functions assigned to the COR shall be the responsibility of the alternate COR acting on behalf of the COR. The Contracting Officer hereby appoints the following individual as the alternate COR:

Name: TBD (if applicable)

Address:

Phone:

CONTRACT ADMINISTRATION APPOINTMENTS AND DUTIES (SEP 2015)

In order to expedite administration of this contract/order, the following delineation of duties is provided including the names, addresses and phone numbers for each individual or office as specified. The individual /position designated as having responsibility should be contacted for any questions, clarifications or information regarding the functions assigned.

1. PROCURING CONTRACTING OFFICER (PCO) is responsible for:

- a. All pre-award information, questions, or data;
- b. Freedom of Information inquiries;
- c. Change/question/information regarding the scope, terms or conditions of the basic contract document; and/or
- d. Arranging the post award conference (See FAR 42.503).

NAME: Joseph Caltagirone

ADDRESS: 700 Robbins Avenue - Building 2B, Philadelphia, PA 19111-5083

TELEPHONE: (564) 226-0669

2. CONTRACT ADMINISTRATION OFFICE (CAO) is responsible for matters specified in FAR 42.302 and DFARS 242.302 except in those areas otherwise designated herein.

Name: TBD (if applicable)

Address:

Phone:

4. PAYING OFFICE is responsible for payment of proper invoices after acceptance is documented.

Name: Will be Specified by Each Individual Delivery Order

Address:

5. CONTRACTING OFFICERS REPRESENTATIVE (COR) is responsible for:

- a. Liaison with personnel at the Government installation and the contractor personnel on site;
- b. Technical advice/recommendations/clarification on the statement of work;
- c. The statement of work for delivery/task orders placed under this contract.
- d. An independent government estimate of the effort described in the definitized statement of work;
- e. Quality assurance of services performed and acceptance of the services or deliverables;
- f. Government furnished property;
- g. Security requirements on Government installation;
- h. Providing the PCO or his designated Ordering Officer with appropriate funds for issuance of the Delivery /Task order; and/or
- i. Certification of invoice for payment.

NOTE: When, in the opinion of the Contractor, the COR requests effort outside the existing scope of the contract (or delivery/task order), the Contractor shall promptly notify the Contracting Officer (or Ordering Officer) in writing. No action shall be taken by the contractor under such direction until the Contracting Officer has issued a modification to the contract or, in the case of a delivery/task order, until the Ordering Officer has issued a modification of the delivery/task order; or until the issue has otherwise been resolved. THE COR IS NOT AN ADMINISTRATIVE CONTRACTING OFFICER AND DOES NOT HAVE THE AUTHORITY TO DIRECT THE ACCOMPLISHMENT OF EFFORT WHICH IS BEYOND THE SCOPE OF THE STATEMENT OF WORK IN THE CONTRACT OR DELIVERY/TASK ORDER.

COR Name: TBD

Address:

Phone:

In the event that the COR named above is absent due to leave, illness, or official business, all responsibilities and functions assigned to the COR will be the responsibility of the alternate COR listed below:

ACOR Name: TBD (if applicable)

Address:

Phone:

6. TECHNICAL ASSISTANT, if assigned by the requiring activity, is responsible for providing technical assistance and support to the COR in contract administration by:

- a. Identifying contractor deficiencies to the COR;
- b. Reviewing contract/delivery/task order deliverables and recommending acceptance/rejection of deliverables;
- c. Identifying contractor noncompliance of reporting requirements;
- d. Evaluating contractor proposals for specific contracts/orders and identifying areas of concern affecting negotiations;
- e. Reviewing contractor reports providing recommendations for acceptance/rejection;
- f. Reviewing invoices for appropriateness of costs and providing recommendations to facilitate certification of the invoice;
- g. Providing COR with timely input regarding the SOW, technical direction to the contractor and recommending corrective actions; and
- h. Providing written reports to the COR as required concerning trips, meetings or conversations with the contractor.

Name: TBD (if applicable)

Address:
Phone:

7. ORDERING OFFICER is responsible for:

- a. Requesting, obtaining, and evaluating proposals for orders to be issued;
- b. Determining the estimated cost of the order is fair and reasonable for the effort proposed;
- c. Obligating the funds by issuance of the delivery/task order;
- d. Authorization for use of overtime;
- e. Authorization to begin performance; and/or
- f. Monitoring of total cost of delivery/task orders issued.

The following limitations/restrictions are placed on the Ordering Officer:

- a. Type of order issued is limited by this contract to the contract type or types covered by this contract and to any limitations on the warrant of the individual placing the orders;
- b. No order shall be placed in excess of \$----- without the prior approval of the PCO; and/or
- c. No order shall be placed with delivery requirements in excess of -----.

Name: TBD (if applicable)

Address:

Phone:

ORDERING PROCEDURES

(a) General: Supplies to be furnished under this contract shall be furnished at such times as ordered by the issuance of a Delivery Order (DO) on DD Form 1155 or SF 1449 by the Ordering Officer. All orders issued hereunder are subject to the terms and conditions of this contract. In the event of any inconsistency between any delivery order and the contract, the contract shall control.

(b) Ordering Procedures

Delivery Orders may be issued on either a competitive or non-competitive basis. In accordance with FAR 16.505 (b)(2), when an exception to "the fair opportunity to be considered" exists, the delivery order will be processed on a non-competitive basis.

1. Request for Quotations (RFQ)

The Ordering Office will issue an RFQ to all awardees, unless the requirement meets one of the exceptions in FAR 16.505(b)(2), in which case the Ordering Officer may limit the number of awardees solicited.

The RFQ will include the following elements:

- Statement of Work (SOW) to include delivery schedule
- Inspection/Acceptance standards (if necessary)
- Evaluation criteria
- Response date for receipt of quotations

2. Source Selection Process

Delivery order awards will be made to the quoter who the Government determines has submitted the most advantageous quotation considering the evaluation criteria stipulated in the RFQ.

Price will always be considered in the evaluation of delivery order quotes. Non-price evaluation criteria (consisting of Non-price Evaluation Factor(s)) will also be considered in the evaluation if the delivery order RFQ stipulates such Non-price criteria. For each delivery order RFQ where Non-price criteria are to be considered in the evaluation, the RFQ will identify the relative importance of the Non-price criteria to Price, the Non-price Evaluation Factor or Factors to be evaluated under the Non-price criteria, and the relative importance of the Non-price Evaluation Factors to each other (if more than one Non-price Factor is specified). The following Non-price Evaluation Factors may be utilized, at the discretion of the Ordering Officer, in delivery order RFQs:

- Past Performance: Evaluation of this factor may include how well the contractor has performed in regards to timeliness, quality of performance, and cost control on earlier orders under this contract and may include other information available to the Ordering Officer. As work proceeds under this contract, it is probable that current past performance information on recent delivery orders will be more important in evaluation of future delivery orders.

Price submissions and evaluations will be as follows: For quotations submitted in response to RFQs for FFP orders, contractors shall provide pricing at the CLIN or SubCLIN level (as required by the individual RFQ) plus any supporting pricing information that the Ordering Officer may specify in the RFQ. Pricing will be evaluated based on the overall total price quoted.

(c) Content of Delivery Orders. Delivery Orders will contain the following information:

1. Date of order
2. Contract number and order number.
3. For supplies and services, contract item number and description, quantity, and unit price and extended price or estimated cost and fee.
4. Delivery or performance schedule.
5. Place of delivery or performance (including consignee).
6. Any packaging, packing, and shipping instructions.
7. Accounting and appropriation data.
8. Method of payment and payment office, if not specified in the contract

(d) Oral Orders: Oral orders may be placed hereunder only in emergency circumstances. Information described above shall be furnished to the contractor at the time of placing an oral order and shall be confirmed by issuance of a written Delivery Order on a DD Form 1155 or SF1449 within ten (10) working days of the placement of the oral order.

(e) Modifications of Delivery Orders: Delivery orders may only be modified by the Ordering Officer. Modifications to delivery orders shall include the information set forth in paragraph (c) above, as applicable. Delivery orders may be modified orally by the Ordering Officer in emergency circumstances. Oral modifications shall be confirmed by issuance of a written modification within two working days from the time of the oral communication modifying the order.

(f) Cautionary Note: Nothing stated in the delivery order, in a quote, or in discussions thereto, can modify the basic contract terms or regulations governing this contract.

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

Allowed Per Order

Minimum: 10,000.00 Dollars, U.S.

Maximum: 51,136,250.00 Dollars, U.S.

Government Minimum/Maximum to Order

Minimum: 10,000.00 Dollars, U.S.

Maximum: 51,136,250.00 Dollars, U.S.

Item	Supplies/Service	Estimated Quantity	Unit	Unit Price	Amount
0001	Profiling Floats in accordance with the Statement of Work (SOW). Pricing is provided at Delivery Order level. CLIN 0001 shall utilize Operation and Maintenance Navy (O&MN) funding only. NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Firm Fixed Price	1	Lot		
0002	Profiling Floats in accordance with the Statement of Work (SOW). Pricing is provided at Delivery Order level. CLIN 0002 shall utilize Research, Development, Test, and Evaluation (RDT&E) funding only. NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. Pricing Arrangement: Firm Fixed Price	1	Lot		

Continuation of Description

STATEMENT OF WORK (SOW)

FOR

DATA-ENCRYPTED AUTONOMOUS IN-SITU SUBSURFACE PROFILING SYSTEMS

DECEMBER 30, 2025

1.0 Introduction

1.1 Description of Requirement

The Naval Oceanographic Office (NAVOCEANO) will require the purchase of air-rigged or air/surface-deployable profiling floats in support of meteorological and oceanographic operations globally. Profiling floats and float data must meet NAVOCEANO standards. The profiling floats must communicate in Short Burst Data (SBD) format over the Iridium Satellite communications system via the DoD Defense Information Systems Network (DISN) Enhanced Mobile Satellite Services (EMSS). The National Institute of Standards and Technology (NIST) certified float data must be FIPS 140-# encrypted (with Level 1 security) while being collected and transmitted. The data will then be decrypted and processed once secured within the NAVOCEANO firewall.

1.2 Ordering Period:

- 1.2.1 The contract includes a 3-year ordering period beginning on the contract effective date.
- 1.2.2 Delivery date specified in the delivery order at FOB destination.

2.0 Salient Characteristics

An encrypted autonomous profiling float, which is air-rigged, is equipped with features required for the attachment and release of a parachute for air deployment; air deployable profiling floats are capable of being successfully deployed from an aircraft via parachute capable of operating in the open sea and providing underwater profile measurements of salinity, temperature, and pressure. The main housing of the profiling float encloses the batteries, circuit boards, satellite transmitter, and all electronics to perform sensing and collection operations. The primary function of the subsurface profiling float is to provide a platform with the capability to drift at a depth where the float is neutrally buoyant and cycles vertically from an operator-specified depth to the surface and then returns to an operator-specified depth. The profiling float system, upon contact with the water, must be capable of freeing itself from the deployment package.

2.1 Standard Float Configuration

- a. Either alkaline or lithium-thionyl chloride (Li-SOCl₂) will be specified as the power source for each individual profiling float at the delivery order level. When alkaline is specified, the profiling float unit must not contain any lithium power source(s).
- b. The profiling float must be air-deployable and surface-deployable. The profiling float must contain all associated packaging and rigging. The float must be air-rigged.
- c. The profiling float and float data must meet NAVOCEANO ingest standards at the delivery order level.

- d. The Contractor must program the profiling float to user specifications regarding operating temperature, salinity, and pressure environment to be determined at the delivery order level.
- e. Each profiling float must be individually ballasted as specified in these salients and to user specifications. Ballasting characteristics of any one particular profiling float which is individually ballasted as described must not be used to presume or infer the ballasting characteristics of any other profiling float or group of profiling floats. Ballasting requirements will be determined at the delivery order level.
- f. The profiling float data must be routed directly to the NAVOCEANO after deployment. After the profiling float platform has been activated, the manufacturer must neither collect, nor process, nor archive any float data.
- g. The air-launched configuration must be deployable using military cargo or patrol aircraft.
- h. The profiling float must be capable of operating unattended for at least 120 profiles to a minimum depth of 500 meters. or 200 profiles to a minimum depth of 500 meters, at pre-programmed or operator-specified intervals.
- i. The profiling float full depth-rating will be determined at the task order level based on mission depth requirements of lots ordered.
- j. The profiling float must be capable of collecting data according to NAVOCEANO directed sampling interval (spot-samples) or in a continuous-profiling interval, high-resolution mode.
- k. The profiling float must be capable of being commanded, via the Iridium satellite Short Burst Data (SBD) based bi-directional communication protocol, to remain at surface and to transmit position until instructed to resume normal operating cycle.
- l. The profiling float must be capable of collecting data from multiple profiling cycles to at least 2,000 meters in depth in less than 24 hours.
- m. The profiling float must be capable of obtaining the first profile independent of the NAVOCEANO specified park and profile cycle interval.
- n. The profiling float must be capable of initiating profile data collection from the park depth, or, after drifting at the park depth, descend to a deeper depth to initiate profile data collection.
- o. The profiling float must be capable of automatic pressure activation.
- p. The profiling float CTD sensor must be capable of sampling data at a rate of at least once every 2 seconds and temperature resolution at a tenth of a degree minimum.
- q. The profiling float must support in-water operations from sea state 0 through sea state 6 as per the International Sea and Swell scale.
- r. Optional sensor packages such as hydrophones, optical sensors, current meters, bottom profiling systems, and bioluminescence sensors may be included in the IDIQ response; however, they will not be evaluated as part of the source selection process. The Standard Configuration listed above in this section is the only mandatory requirement established by the Government. Optional sensors packages, if needed, will be identified at the task order level when mission objectives or sensor evaluation activities require capabilities beyond the Standard Configuration. Additionally, these optional sensor packages are encouraged to utilize plug and play commercial technologies to the maximum extent.

2.1.1 Communications

- a. The autonomous profiling float must report through the DoD Defense Information Systems Network (DISN) Enhanced Mobile Satellite Services (EMSS) using the Iridium satellite SBD based system utilizing bi-directional communication protocol for data dissemination and platform position determination. The profiling float must use a Global Positioning System receiver for position determination. The Contractor's Iridium modem International Mobile Equipment Identity (IMEI) must be DoD-approved and not a commercial IMEI and must transmit data via the DoD EMSS Gateway. The same modem and IMEI number must be provided by the Contractor to NAVOCEANO for provisioning and activation by NAVOCEANO.

- b. The SBD float must be capable of reporting detailed engineering data, including all necessary parameters to control and troubleshoot the float, especially in shallow water operations, along with the profile data in short burst format to NAVOCEANO servers.
- c. The Iridium SBD profiling float must be capable of receiving a file over air containing commands that will change the settings of the operating parameters of the profiling float. The Iridium SBD remote control commands must include the ability to, at a minimum and while operational at sea:
 - i. Modify the park/drift depth;
 - ii. Modify the amount of time spent at the specified park/drift depth;
 - iii. Modify the ascent rate;
 - iv. Modify the park/drift pressure sampling rate.
- d. All individual profiling floats shall be capable of Federal Information Processing Standard (FIPS) 140-#, Level 1 encryption, and the Contractor shall provide up-to-date proof of NIST certification of FIPS 140-#, Level 1 encryption capability, via the Cryptographic Module Validation Program, for all profiling float vehicles ordered with this capability.
- e. All profiling floats must comply with the most up to date cybersecurity policies and guidance from the Committee on National Security Systems <https://www.cnss.gov/cnss/issuances/Policies.cfm> on the below items:
 - i. CYBERSECURITY of UNMANNED NATIONAL SECURITY SYSTEMS -CNSSP No. 28
 - ii. CRYPTOGRAPHIC KEY PROTECTION -CNSSP 30

2.1.2 Pre-Deployment

- a. The profiling floats must be capable of being stored for at least 1-year in a climate-controlled warehouse or in a climate-controlled space aboard a ship.
- b. The profiling floats must be pre-ballasted for a specified area of the ocean before delivery as specified within each individual delivery order. Potential ocean deployment areas include, but are not necessarily limited to, the South China Sea, the Mediterranean Sea, the Red Sea, the Sulu Sea, the Arctic, and low density inland seas. Different depth sampling intervals may be specified by NAVOCEANO for different areas of the ocean.
- c. The profiling float must be capable of running self-diagnostic tests conducted by the end-user.
- d. The profiling float must be capable of being re-configured to change operating parameters at the end-user's facility. The float must also include the capability to connect directly to a NAVOCEANO laptop in an approved manner.
- e. The Contractor must provide software and software program code updates to NAVOCEANO no later than delivery of the profiling float for decoding the transmitted data stream as Government Off-the-Shelf (GOTS) software, applying calibration coefficients, and producing an output file containing: temperature (degrees Celsius), pressure (dbar), depth (m), conductivity (S/m), salinity (PSU), and positional information.
- f. All source code must be included as GOTS software. This software must be compatible with the Red Hat Enterprise 7 (or later) Linux operating system for a PC, and the software must be delivered to run on any such DoD system as a single, specific, non-privileged user. Root privileges must not be required to execute or build the software, and the software must use relative paths. The software must be directly supplied to NAVOCEANO and be DISA Security Technical Implementation Guides (STIG) compliant (reference: <https://iase.disa.mil/stigs/Pages/index.aspx>).
- g. The Contractor must provide a digital copy of the technical specifications, including ballasting and calibration details, and user guides. Digital documentation describing float pre-deployment, deployment, testing, and operational software must also be provided with each delivery order.
- h. The Contractor must provide a basic user-friendly software utility to perform mission parameter verification checks and notifications prior to posting the commands for implementation. The utility should run on a Windows and Linux

platform. The output should indicate whether the mission parameters are accepted or rejected, and if rejected, which parameter values were responsible.

3.0 Delivery/Storage Requirements

- a. Upon delivery, the Contractor must provide the necessary accessory(s) required to connect the float to a NAVOCEANO laptop for communication. The Contractor must also provide the accessories required to prepare the profiling float for deployment as indicated in these salient descriptions.
- b. The Contractor must provide necessary software and software program code updates to NAVOCEANO at least through the end of the final individual delivery order period.
- c. The articles to be furnished must be delivered within the time frame indicated on each delivery order issued under the contract, with the Iridium IMEI provisioning supplied by the NAVOCEANO Contracting Officer Representative (COR).
- d. All instruments must be shipped freight on board (FOB) destination.
- e. The Contractor must not release any NAVOCEANO procurement or procurement-related information (e.g., number of platforms procured, type of platforms procured) to public and/or to private entities without the Government's consent.

4.0 Technological Advancements

In anticipation of any technological advancements to the functionality of profiling float parts, the parts of the profiling floats may be replaced for existing salient characteristics parts over the course of the resultant contract. Those technologically advanced parts may be evaluated and replaced when the technology proves to be superior, cost effective, compatible with existing salient characteristics of the profiling floats. These technological advancements in the functionality of the profiling floats to be procured that replaces existing technology shall be considered within the scope of this contract.

5.0 Packaging

- a. Each shipping container must always be clearly marked on the outside to indicate any unevenness or weight imbalances, when applicable, to avoid injury to personnel, and to avoid damage to packaging or the actual float due to stacking imbalances.
- b. Each profiling float must be marked on the hull area with only the float serial number which must be provided by the manufacturer. The float serial number shall also be clearly indicated on the exterior of each shipping container to help minimize inspection efforts.
- c. Each profiling float must be packaged in its own individual shipping container unless otherwise stated. Within each shipping container, each individual profiling float must be packaged in its own individual deployment container.
- d. The presence of a parachute(s) must be clearly indicated on the exterior of each shipping container to quickly assess and confirm delivery specifications for invoice approval.
- e. The presence of tools, documentation and/or accessories must be indicated on the shipping container to help minimize inspection efforts.
- f. All documentation (including shipping records) and containers must be marked with their associated contract number and the delivery order number.
- g. Each deployment container located inside the shipping container as well as the shipping container itself must be visibly labeled with an impact monitor to indicate when float(s) have been exposed to a potentially damaging force during transit or storage.
- h. All markings on instrument, deployment container, and shipping container must be clearly visible and all labels must be securely affixed.

- i. Each shipping container, each deployment container and all packing materials must comply with all domestic and international shipping rules, regulations, and restrictions. The shipping container must be strong enough to protect its contents from the hazards of shipping and storage.
- j. The shipping container must be as light in weight as shipping hazards and the inherent strength properties of the materials permit.
- k. The actual shipping container framework must provide the primary basic strength and support to absorb most of the stress imposed by the container contents.
- l. Each shipping container must be able to easily accommodate a standard pallet jack/pallet truck.
- m. The shipping container must be completely enclosed on the top, bottom and all sides and constructed in such a manner as to reasonably protect the contents from inclement weather and adverse environmental conditions.

6.0 Security Requirements

6.1 The overall classification of this contract is CUI (Controlled Unclassified Information). Contractor does not require access to classification information in the performance of this contract. All contract personnel shall comply with the directives and policies established in 2 CFR Part 117 "National Industrial Security Program Operating Manual", DoD Instruction 5200.48 (Controlled Unclassified Information) and SECNAVINST 5510.36B "Department of the Navy (DoN) Information Security Program. The Contractor does not require access to U.S. Government Information Technology (IT) systems".

6.2 All information and data related to this project that the Contractor gathers or obtains shall be both protected from unauthorized release and considered the property of the Government. The contracting officer will be the sole authorized official to release verbally or in writing, any data, the draft deliverables, the final deliverables, or any other written or printed materials pertaining to this contract. Press releases, marketing material, or any other printed or electronic documentation related to this project, must not be publicized without the written approval of the contracting officer.

7.0 Quality Control Plan (QCP)

7.1 Contractors shall provide an organizational level quality control plan as part of the proposal response outlining the Contractor's process to ensure delivery schedules are met and quality of the product mitigates failures of products on delivery. Contractors shall annotate facility standards, if any, within the International Standards Organization (ISO) for hazmat, safety, and production practices.

7.2 Military Specification (MILSPEC) LM_MIL-STD-129R_140218 shipping marking and labeling standards are instituted to meet FOB destination requirements to military locations globally.

7.3 The Contractor shall not implement any design change, material substitution, manufacturing process change, or component redesign affecting form, fit, function, performance, safety, or reliability without prior written approval from the Government.

- The Contractor shall submit a Design Change Request (DCR) detailing the proposed change, engineering rationale, testing data, and expected impacts.
- The Government will review the DCR with support from designated Government Subject Matter Experts (SMEs).
- No changes may be incorporated into production units until the Contractor receives written authorization from the COR or the Contracting Officer.

8.0 Technology Refresh

8.1 The Contractor shall continuously monitor advancements in commercial and government relevant technologies applicable to the scope of this contract. The Contractor shall incorporate current, commercially available, and industry accepted technologies into all proposals and performance under task orders. The Government may request a Technology Refresh Plan at any time during the ordering period.

8.2 The Contractor shall submit a Technology Refresh Plan annually at a minimum after award describing:

- Emerging technologies relevant to the contract scope
- Proposed updates to processes, and systems
- Impacts on cost, schedule, and performance

8.3 If applicable, the Contractor shall propose innovative technical solutions and modernized approaches when responding to task orders. Proposals shall identify how the proposed solution leverages current technologies, improves efficiency, reduces lifecycle cost, or enhances mission performance.

Requirements

The NAVOCEANO requires the purchase of air-rigged or air/surface-deployable profiling floats in support of meteorological and oceanographic operations globally. Profiling floats and float data must meet NAVOCEANO standards. The profiling floats must communicate in Short Burst Data (SBD) format over the Iridium Satellite communications system via the DoD Defense Information Systems Network (DISN) Enhanced Mobile Satellite Services (EMSS). The National Institute of Standards and Technology (NIST) certified float data must be FIPS 140-# encrypted (with Level 1 security) while being collected and transmitted. The data will then be decrypted and processed once secured within the NAVOCEANO firewall.

Continuation of Packaging and Marking

Continuation of Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. DoDAAC: N62306 CountryCode: USA NAVAL OCEANOGRAPHIC OFFICE 1002 BALCH BOULEVARD, STENNIS SPACE CENTER MS 39522-5001 STENNIS SPACE CENTER, MS 39522-5001 UNITED STATES Richard Gagne, Oceanography Requirements Coordinator Email: richard.gagne3.civ@us.navy.mil Telephone: 228-688-4811
0002	Inspection and Acceptance Location Both Destination Instructions: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. DoDAAC: N62306 CountryCode: USA NAVAL OCEANOGRAPHIC OFFICE 1002 BALCH BOULEVARD, STENNIS SPACE CENTER MS 39522-5001 STENNIS SPACE CENTER, MS 39522-5001 UNITED STATES Richard Gagne, Oceanography Requirements Coordinator Email: richard.gagne3.civ@us.navy.mil Telephone: 228-688-4811

Continuation of Deliveries or Performance

Overall Contract Delivery Period

Period of Performance
From 23 Sep 2026 to 22 Sep 2029

The ordering period above may include unexercised options

Contractor
Destination

Line Item	Delivery Schedule	Estimated Quantity	Address and POC	Special Handling/Notes
0001	Period of Performance From 23 Sep 2026 To 22 Sep 2029	1 Lot		FoB Details Contractor Destination
0002	Period of Performance From 23 Sep 2026 To 22 Sep 2029	1 Lot		FoB Details Contractor Destination

Continuation of Accounting and Appropriation Data

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-3	Gratuities.	Apr 1984		
52.204-13	System for Award Management Maintenance.	Oct 2018		
52.204-18	Commercial and Government Entity Code Maintenance.	Aug 2020		
52.212-4	Contract Terms and Conditions-Commercial Products and Commercial Services.	Nov 2023		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7022	Expediting Contract Closeout.	May 2021		
252.216-7010	Postaward Debriefings for Task Orders and Delivery Orders.	Oct 2025		
252.223-7008	Prohibition of Hexavalent Chromium.	Jan 2023		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support.	Jan 2023		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.219-7003	Small Business Subcontracting Plan (DoD Contracts).	Dec 2019		
252.219-7004	Small Business Subcontracting Plan (Test Program).	Dec 2022		
252.225-7052	Restriction on the Acquisition of Certain Magnets, Tantalum, and Tungsten.	May 2024		

DFARS Clauses Incorporated by Full Text

252.211-7003 Item Unique Identification and Valuation. (Jan 2023)

ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)

(a) *Definitions.* As used in this clause-

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

"Concatenated unique item identifier" means-

(1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or

(2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

"Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

"Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.

"DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

"DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

"Enterprise" means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

"Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.

"Government's unit acquisition cost" means-

- (1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;
- (2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery; and
- (3) For items produced under a time-and-materials contract, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery.

"Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at http://www.aimglobal.org/?Reg_Authority15459.

"Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.

"Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

"Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

"Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

"Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

"Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

"Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) *Unique item identifier.*

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items:

Contract Line, Subline, or

Exhibit Line Item Number

Item Description

=====	=====
=====	=====
=====	=====

(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or

Exhibit Line Item Number

Item Description

=====	=====
=====	=====
=====	=====

(If items are identified in the Schedule, insert "See Schedule in this table.")

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed repairables and DoD serially managed nonrepairables as specified in Attachment Number ____.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number ____.

(v) Any item not included in (i), (ii), (iii), or (iv) for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology - International symbology specification - Data matrix; ECC200 data matrix specification.

(4) *Data syntax and semantics of unique item identifiers.* The Contractor shall ensure that-

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology - Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) *Unique item identifier.*

(i) The Contractor shall-

(A) Determine whether to-

(1) Serialize within the enterprise identifier;

(2) Serialize within the part, lot, or batch number; or

(3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code-

(A) Shall not be placed on the item; and

(B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

- (1) Unique item identifier.
- (2) Unique item identifier type.
- (3) Issuing agency code (if concatenated unique item identifier is used).
- (4) Enterprise identifier (if concatenated unique item identifier is used).
- (5) Original part number (if there is serialization within the original part number).
- (6) Lot or batch number (if there is serialization within the lot or batch number).
- (7) Current part number (optional and only if not the same as the original part number).
- (8) Current part number effective date (optional and only if current part number is used).
- (9) Serial number (if concatenated unique item identifier is used).
- (10) Government's unit acquisition cost.
- (11) Unit of measure.
- (12) Type designation of the item as specified in the contract schedule, if any.
- (13) Whether the item is an item of Special Tooling or Special Test Equipment.
- (14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

(1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.

(2) Unique item identifier of the embedded subassembly, component, or part.

(3) Unique item identifier type.**

(4) Issuing agency code (if concatenated unique item identifier is used).**

(5) Enterprise identifier (if concatenated unique item identifier is used).**

(6) Original part number (if there is serialization within the original part number).**

(7) Lot or batch number (if there is serialization within the lot or batch number).**

- (8) Current part number (optional and only if not the same as the original part number).**
- (9) Current part number effective date (optional and only if current part number is used).**
- (10) Serial number (if concatenated unique item identifier is used).**
- (11) Description.

** Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/>.

(2) Embedded items shall be reported by one of the following methods-

(i) Use of the embedded items capability in WAWF;

(ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/uidregistry/>; or

(iii) Via WAWF as a deliverable attachment for exhibit line item number (fill in) ____, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) *Subcontracts*. If the Contractor acquires by subcontract, any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

252.232-7006 Wide Area WorkFlow Payment Instructions.

(Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

PROVIDE AT DELIVERY ORDER LEVEL

(a) *Definitions*. As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing*. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access*. To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training*. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission*. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions*. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

- (i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.
- (ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

Combo

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

N/A

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	==
Issue By DoDAAC	==
Admin DoDAAC	==
Inspect By DoDAAC	==
Ship To Code	==
Ship From Code	==

Mark For Code	==
Service Approver (DoDAAC)	==
Service Acceptor (DoDAAC)	==
Accept at Other DoDAAC	==
LPO DoDAAC	==
DCAA Auditor DoDAAC	==
Other DoDAAC(s)	==

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

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(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Addendum to 52.212-4, Contract Terms and Conditions - Commercial Products and Commercial Services

Contract Terms and Conditions Required To Implement Statutes or Executive Orders — Commercial Products and Commercial Services

FAR Clauses Incorporated by Full Text

52.212-5 Contract Terms and Conditions Required To Implement Statutes or Executive Orders-Commercial Products and Commercial Services. (Oct 2025)

Contract Terms and Conditions Required To Implement Statutes or Executive Orders-Commercial Products and Commercial Services (Oct 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (Aug 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (Oct 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[X] (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (Jun 2020), with *Alternate I* (Nov 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

[X] (2) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509)).

[] (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

[] (4) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community-see FAR 3.900(a).

[X] (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

[] (6) [Reserved].

[] (7) 52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

[] (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

[X] (9) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

[] (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders-Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) (Pub. L. 115-390, title II).

[] (11)

(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

[X] (ii) Alternate I (Dec 2023) of 52.204-30.

- ☒ (12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Jan 2025) (31 U.S.C. 6101 note).
- ☐ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) (41 U.S.C. 2313).
- ☐ (14) [Reserved].
- ☐ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) (15 U.S.C. 657a).
- ☒ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).
- ☐ (17) [Reserved]
- ☐ (18)
- (i) 52.219-6, Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).
- ☐ (ii) Alternate I (Mar 2020) of 52.219-6.
- ☐ (19)
- (i) 52.219-7, Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).
- ☐ (ii) Alternate I (Mar 2020) of 52.219-7.
- ☒ (20) 52.219-8, Utilization of Small Business Concerns (Jan 2025)(15 U.S.C. 637(d)(2) and (3)).
- ☒ (21)
- (i) 52.219-9, Small Business Subcontracting Plan (Jan 2025) (15 U.S.C. 637(d)(4)).
- ☐ (ii) Alternate I (Nov 2016) of 52.219-9.
- ☐ (iii) Alternate II (Nov 2016) of 52.219-9.
- ☐ (iv) Alternate III (Jun 2020) of 52.219-9.
- ☐ (v) Alternate IV (Jan 2025) of 52.219-9.
- ☒ (22)
- (i) 52.219-13, Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).
- ☐ (ii) Alternate I (Mar 2020) of 52.219-13.
- ☐ (23) 52.219-14, Limitations on Subcontracting (Oct 2022) (15 U.S.C. 657s).
- ☒ (24) 52.219-16, Liquidated Damages-Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).
- ☐ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (Feb 2024) (15 U.S.C. 657f).
- ☒ (26)
- (i) 52.219-28, Postaward Small Business Program Rerepresentation (Jan 2025) (15 U.S.C. 632(a)(2)).
- ☐ (ii) Alternate I (Mar 2020) of 52.219-28.
- ☐ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).
- ☐ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).
- ☐ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (Mar 2020) (15 U.S.C. 644(r)).
- ☐ (30) 52.219-33, Nonmanufacturer Rule (Sep 2021) (15 U.S.C. 637(a)(17)).
- ☒ (31) 52.222-3, Convict Labor (Jun 2003) (E.O. 11755).

☒ (32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (Jan 2025)(E.O. 13126).

☐ (33) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).

☐ (34)

(i) 52.222-26, Equal Opportunity (Sep 2016) (E.O. 11246).

☐ (ii) Alternate I (Feb 1999) of 52.222-26.

☒ (35)

(i) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

☐ (ii) Alternate I (Jul 2014) of 52.222-35.

☒ (36)

(i) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

☐ (ii) Alternate I (Jul 2014) of 52.222-36.

☒ (37) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

☒ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).

☒ (39)

(i) 52.222-50, Combating Trafficking in Persons (Oct 2025) (22 U.S.C. chapter 78 and E.O. 13627).

☐ (ii) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

☐ (40) 52.222-54, Employment Eligibility Verification (Jan 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

☐ (41)

(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

☐ (ii) Alternate I (May 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

☐ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) (42 U.S.C. 7671, *et seq.*).

☐ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) (42 U.S.C. 7671, *et seq.*).

☐ (44) 52.223-20, Aerosols (May 2024) (42 U.S.C. 7671, *et seq.*).

☐ (45) 52.223-21, Foams (May 2024) (42 U.S.C. 7671, *et seq.*).

☐ (46) 52.223-23, Sustainable Products and Services (May 2024) (E.O. 14057, 7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).

☐ (47)

(i) 52.224-3 Privacy Training (Jan 2017) (5 U.S.C. 552 a).

☐ (ii) Alternate I (Jan 2017) of 52.224-3.

☐ (48)

(i) 52.225-1, Buy American-Supplies (Oct 2022) (41 U.S.C. chapter 83).

☐ (ii) Alternate I (Oct 2022) of 52.225-1.

☐ (49)

(i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.

- [] (ii) Alternate I [Reserved].
- [] (iii) Alternate II (Jan 2025) of 52.225-3.
- [] (iv) Alternate III (Feb 2024) of 52.225-3.
- [] (v) Alternate IV (Oct 2022) of 52.225-3.
- [] (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note).
- [X] (51) 52.225-13, Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- [] (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- [] (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).
- [] (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).
- [X] (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) (E.O. 13513).
- [] (56) 52.229-12, Tax on Certain Foreign Procurements (Feb 2021).
- [] (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- [] (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- [X] (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (Oct2018) (31 U.S.C. 3332).
- [] (60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).
- [] (61) 52.232-36, Payment by Third Party (May 2014) (31 U.S.C. 3332).
- [] (62) 52.239-1, Privacy or Security Safeguards (Aug 1996) (5 U.S.C. 552a).
- [X] (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).
- [X] (64) 52.242-5, Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d)(13)).
- [] (65)
- (i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).
- [] (ii) Alternate I (Apr 2003) of 52.247-64.
- [] (iii) Alternate II (Nov 2021) of 52.247-64.
- (c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:
- [] (1) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter67).
- [] (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- [] (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- [] (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29U.S.C.206 and 41 U.S.C. chapter 67).
- [] (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).
- [] (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).
- [] (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

[] (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

[] (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

[] (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) (49 U.S.C. 40118 (g)).

(d) *Comptroller General Examination of Record*. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889 (a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)

(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (Dec 2023) (Pub. L. 115-390, title II).

(B) Alternate I (Dec 2023) of 52.204-30.

(viii) 52.219-8, Utilization of Small Business Concerns (Jan 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).

(x) 52.222-26, Equal Opportunity (Sep 2016) (E.O. 11246).

(xi) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

(xvi)

(A) 52.222-50, Combating Trafficking in Persons (Oct 2025) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (Jan 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

(xxii)

(A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (Jan 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

Addendum to Contract Clauses

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.242-13	Bankruptcy.	Jul 1995		
52.247-34	F.o.b. Destination.	Jan 1991		
52.232-18	Availability of Funds.	Apr 1984		
52.202-1	Definitions.	Jun 2020		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7023	Reporting Requirements for Contracted Services. (Alternate I)	Jul 2021	Alternate I	Jul 2021
252.225-7001	Buy American and Balance of Payments Program.	Feb 2024		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.239-7001	Information Assurance Contractor Training and Certification.	Jan 2008		
252.225-7967	Prohibition Regarding Russian Fossil Fuel Business Operations (Deviation 2024-O0006, Revision 1)	Feb 2024	Deviation 2024-O0006	Feb 2024
252.225-7972	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024

FAR Clauses Incorporated by Full Text

52.216-18 Ordering. (Aug 2020)

Ordering (Aug 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from 9/23/2026 through 9/22/2029.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when-

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either-

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19 Order Limitations. (Oct 1995)

Order Limitations (Oct 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than \$10,000.00, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor-

(1) Any order for a single item in excess of the amount specified within Section B (Schedule of Services);

(2) Any order for a combination of items in excess of the amount specified within Section B (Schedule of Services); or

(3) A series of orders from the same ordering office within 1 day that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 1 day after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-22 Indefinite Quantity.

(Oct 1995)

Indefinite Quantity (Oct 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after the expiration of any task orders issued prior to the expiration of the ordering period specified within the contract.

(End of clause)

52.216-32 Task-Order and Delivery-Order Ombudsman.

(Sep 2019)

Task-Order and Delivery-Order Ombudsman (Sept 2019)

(a) In accordance with 41 U.S.C. 4106(g), the Agency has designated the following task-order and delivery-order Ombudsman for this contract. The Ombudsman must review complaints from the Contractor concerning all task-order and delivery-order actions for this contract and ensure the Contractor is afforded a fair opportunity for consideration in the award of orders, consistent with the procedures in the contract. Mr. Steven Nickle, Deputy Assistant Secretary of the Navy (Procurement), 1000 Navy Pentagon, Washington, DC 20350, phone (703) 614-9600, fax (703) 614-9394, and email NCAG@navy.mil.

(b) Consulting an ombudsman does not alter or postpone the timeline for any other process (e.g., protests).

(c) Before consulting with the Ombudsman, the Contractor is encouraged to first address complaints with the Contracting Officer for resolution. When requested by the Contractor, the Ombudsman may keep the identity of the concerned party or entity confidential, unless prohibited by law or agency procedure.

(End of clause)

52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

FAR Clauses: <https://www.acquisition.gov/browse/index/far>

DFARS Clauses: <https://www.acquisition.gov/dfars>

(End of clause)

52.252-6 Authorized Deviations in Clauses.

(Nov 2020)

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any **DFARS** (48 CFR **Chapter 2**) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.232-7007 Limitation of Government's Obligation.

(Apr 2014)

LIMITATION OF GOVERNMENT'S OBLIGATION (APR 2014)

PROVIDE AT DELIVERY ORDER LEVEL

(a) Contract line item(s) [Contracting Officer insert after negotiations] is/are incrementally funded. For this/these item(s), the sum of \$ [Contracting Officer insert after negotiations] of the total price is presently available for payment and allotted to this contract. An allotment schedule is set forth in paragraph (j) of this clause.

(b) For item(s) identified in paragraph (a) of this clause, the Contractor agrees to perform up to the point at which the total amount payable by the Government, including reimbursement in the event of termination of those item(s) for the Government's convenience, approximates the total amount currently allotted to the contract. The Contractor is not authorized to continue work on those item(s) beyond that point. The Government will not be obligated in any event to reimburse the Contractor in excess of the amount allotted to the contract for those item(s) regardless of anything to the contrary in the clause entitled "Termination for Convenience of the Government." As used in this clause, the total amount payable by the Government in the event of termination of applicable contract line item(s) for convenience includes costs, profit, and estimated termination settlement costs for those item(s).

(c) Notwithstanding the dates specified in the allotment schedule in paragraph (j) of this clause, the Contractor will notify the Contracting Officer in writing at least ninety days prior to the date when, in the Contractor's best judgment, the work will reach the point at which the total amount payable by the Government, including any cost for termination for convenience, will approximate 85 percent of the total amount then allotted to the contract for performance of the applicable item(s). The notification will state (1) the estimated date when that point will be reached and (2) an estimate of additional funding, if any, needed to continue performance of applicable line items up to the next scheduled date for allotment of funds identified in paragraph (j) of this clause, or to a mutually agreed upon substitute date. The notification will also advise the Contracting Officer of the estimated amount of additional funds that will be required for the timely performance of the item(s) funded pursuant to this clause, for a subsequent period as may be specified in the allotment schedule in paragraph (j) of this clause or otherwise agreed to by the parties. If after such notification additional funds are not allotted by the date identified in the Contractor's notification, or by an agreed substitute date, the Contracting Officer will terminate any item(s) for which additional funds have not been allotted, pursuant to the clause of this contract entitled "Termination for Convenience of the Government."

(d) When additional funds are allotted for continued performance of the contract line item(s) identified in paragraph (a) of this clause, the parties will agree as to the period of contract performance which will be covered by the funds. The provisions of paragraphs (b) through (d) of this clause will apply in like manner to the additional allotted funds and agreed substitute date, and the contract will be modified accordingly.

(e) If, solely by reason of failure of the Government to allot additional funds, by the dates indicated below, in amounts sufficient for timely performance of the contract line item(s) identified in paragraph (a) of this clause, the Contractor incurs additional costs or is delayed in the performance of the work under this contract and if additional funds are allotted, an equitable adjustment will be made in the price or prices (including appropriate target, billing, and ceiling prices where applicable) of the item(s), or in the time of delivery, or both. Failure to agree to any such equitable adjustment hereunder will be a dispute concerning a question of fact within the meaning of the clause entitled "Disputes."

(f) The Government may at any time prior to termination allot additional funds for the performance of the contract line item(s) identified in paragraph (a) of this clause.

(g) The termination provisions of this clause do not limit the rights of the Government under the clause entitled "Default." The provisions of this clause are limited to the work and allotment of funds for the contract line item(s) set forth in paragraph (a) of this clause. This clause no longer applies once the contract is fully funded except with regard to the rights or obligations of the parties concerning equitable adjustments negotiated under paragraphs (d) and (e) of this clause.

(h) Nothing in this clause affects the right of the Government to terminate this contract pursuant to the clause of this contract entitled "Termination for Convenience of the Government."

(i) Nothing in this clause shall be construed as authorization of voluntary services whose acceptance is otherwise prohibited under 31 U.S.C. 1342.

(j) The parties contemplate that the Government will allot funds to this contract in accordance with the following schedule:

On execution of contract	\$ <u> </u>
(month) (day), (year) <u> </u>	\$ <u> </u>
(month) (day), (year) <u> </u>	\$ <u> </u>
(month) (day), (year) <u> </u>	\$ <u> </u>

(End of clause)

List of Contract Documents, Exhibits, or Attachments

ATTACHMENT 1 Seed DO Pricing
ATTACHMENT 2 CAP FFP Indefinite Delivery
ATTACHMENT 3 Past Performance Information Form
ATTACHMENT 4 Past Performance Report Form

Attachments:

Number	Attachment Name	Attachment Description	Reference Identifier	Date
01	2.02 a Attachment 1_ Seed_DO_Pricing	General correspondence, not elsewhere listed		28 Jan 2026
02	2.02 b Attachment 2_CAP_FFP_Indefinite_Delivery	General correspondence, not elsewhere listed		28 Jan 2026
03	2.02 c Attachment 3_Past_Performance_Information_Form	General correspondence, not elsewhere listed		28 Jan 2026

Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-16	Commercial and Government Entity Code Reporting.	Aug 2020		
52.207-6	Solicitation of Offers from Small Business Concerns and Small Business Teaming Arrangements or Joint Ventures (Multiple-Award Contracts).	Aug 2024		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services.	Sep 2023		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.215-7016	Notification to Offerors-Postaward Debriefings.	Oct 2025		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		

FAR Clauses Incorporated by Full Text

52.209-7 Information Regarding Responsibility Matters. (Oct 2018)

INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) *Definitions.* As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means-

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in-

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021)

**REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT
(NOV 2021)**

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services-Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) *Definitions.* As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.*

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to-

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to-

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) *Representation.* The Offeror represents that-

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that-

It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.*

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.215-7008 Only One Offer.

(Dec 2022)

ONLY ONE OFFER (DEC 2022)

(a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation.* If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable.

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts*. Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

The Government intends to award a Firm-Fixed-Price (FFP), multiple award Indefinite Delivery, Indefinite Quantity (IDIQ) contract with up to five (5) awards as a result of this solicitation in accordance with FAR Part 12, Part 15 and Subpart 16.5. Award will be made to offerors whose proposals are most advantageous to the Government under the selection criteria set forth in this solicitation. An award will be made to each and all qualifying offerors. To be determined a qualifying offeror, the offeror must meet the technical capability evaluation and meet the responsibility requirements of FAR 9.104. The Government intends to evaluate proposals and award a contract based on initial proposals. Therefore, the offeror's initial proposal should contain the offeror's best terms from a technical, past performance and price standpoint. The Government reserves the right to award a FFP contract to other than the lowest priced proposal; award a FFP contract without discussions; or award a FFP contract after discussions, whichever is in the best interest of the Government.

The Government intends to make no more than five (5) awards under this solicitation. The Government reserves the right to make fewer awards, or no award, if determined to be in the Government's best interest.

QUESTIONS:

Offerors may submit questions regarding clarification of the solicitation requirements directly to the Contract Specialist and Contracting Officer at borui.z.tang.civ@us.navy.mil and joseph.p.caltagirone3.civ@us.navy.mil (respectively). It is requested that all questions be received no later than 10:00 AM EST, 11 February 2026 as time may not permit responses to questions received after that date to be prepared and issued prior to the receipt of proposals.

INSTRUCTIONS FOR SUBMISSIONS OF PROPOSALS:

(1) Proposals shall be submitted to Borui Tang and Joseph Caltagirone electronically no later than the due date of the solicitation via email borui.z.tang.civ@us.navy.mil and joseph.p.caltagirone3.civ@us.navy.mil. Offerors shall comply with the detailed instructions for the format and content of the proposals contained herein; proposals that do not comply may be considered unacceptable and may render the proposal ineligible for award.

Offerors are strongly encouraged to confirm their proposal was received PRIOR to the closing date and time. It is the responsibility of the offerors to ensure that the Contracting Office has received their entire proposal, with all attachments, PRIOR to the solicitation closing date and time. Only the documents received prior to the solicitation closing date and time will be evaluated.

Offerors should include the following information in the Subject Line of their electronic submission:

Proposal - N0018926RL004 - (Name of Offeror) - Email (#) of (#)

(2) All submissions and attachments shall be in Microsoft Office Word or PDF with the exception of pricing information which may be submitted utilizing Microsoft Office Excel. Submissions are page limited to the maximum number of pages as defined below. Only the price supporting information may be submitted utilizing Microsoft Office Excel. Submissions are page limited to the maximum number of pages as defined below. These page limitations are inclusive of the executive summary and any charts, diagrams, and/or other graphics. Graphics (including tables) in the proposal may use Times New Roman font with 8-point size type or larger. Each "page" is defined as one sheet, 8 1/2 " x 11", with at least one inch margins on all sides, using Times New Roman font with a point size of 12 or greater. Lines shall, at a minimum, be

selected as single-spaced in Microsoft Word with Microsoft Word Normal character spacing. Pages shall be consecutively numbered. The offeror is permitted to submit no more than one page for each of the following, which will not be included in the page count: a cover sheet, list of tables, list of figures, list of acronyms, compliance matrix, and table of contents.

Pages submitted in excess of the page limitations described within will not be evaluated.

GENERAL:

Proposals shall include the following legend on each page:

Source Selection Information - FAR 2.101 and FAR 3.104

PROPOSAL CONTENT:

The proposal should contain the following items in addition to other information required by this solicitation:

The cover page should indicate the following:

- Title of the proposal
- Volume Number (I, II or III)
- Proposal Category (Factor)
- Request for Proposal Number
- Name and Address of Offeror, CAGE Code, SAM Unique Entity ID, and applicable Tax I.D. Number (TIN)
- Point of Contact name, telephone number, and email address
- Proposal valid for 180 days after solicitation closing

Proposals shall be prepared in three (3) separate and distinct volumes (attachments):

- **Volume I - Non-Price Proposal**
 - Factor I: Technical Submission**
 - Factor II: Past Performance**
 - Factor III: Small Business Participation Plan**
- **Volume II - Price Proposal**
 - Factor IV: Price**
- **Volume III - Small Business Subcontracting Plan (Other than Small Businesses)**

Table of Contents: The table of contents should provide sufficient detail as to allow the important elements to be easily located.

(3) Requirements for Style: Each offeror shall submit a proposal that clearly and concisely describes and defines the contractor's response to the requirements contained in the RFP. Unnecessary elaboration or other presentations beyond that sufficient to present a complete and effective proposal are not desired and may be construed as an indication of the offeror's lack of understanding of price consciousness. The proposal shall contain all the pertinent information in sufficient detail in the one area of the proposal where it contributes most critically to the discussion of the same information. When necessary, the offeror shall refer to the initial discussion and identify its location within the submitted proposal.

(4) Proposal Page Limitations

Volume I - Non-Price Proposal - The following page limitations are established:

Title	Page Limit*
Non-Price Proposal - Factor I: Technical Submission	12 Pages
Non-Price Proposal - Factor II: Past Performance	12 Pages
Non-Price Proposal - Factor III: Small Business Participation Plan	No limit

Pages submitted in excess of the page limitations described above will not be evaluated.

* Small Business Participation Plan is not page-limited; however, the Small Business Participation Plan is strictly limited to small business participation information and completed solicitation documents as described in the General section at the beginning of this text.

* Page limits represent the maximum pages the Government will evaluate and are not construed as de facto standards for the amount of material expected in the proposal.

*Cross-Referencing: The proposal volumes shall be written on a stand-alone basis so that its contents may be evaluated without cross referencing to another volume. Information required for proposal evaluation which is not found in its designated volume will be assumed to have been omitted from the proposal.

Volume II - Price Proposal - is not page limited; however, the Price Proposal is to be strictly limited to price information and completed solicitation documents as described in the General Section at the beginning of this text.

Title	Page Limit*
Price Proposal - Factor IV: Price	No limit

Volume III - Small Business Subcontracting Plan (Other than Small Businesses) - is not page-limited; however, the Small Business Subcontracting Plan is strictly limited to small business subcontracting information and completed solicitation documents as described in the General section at the beginning of this text.

Title	Page Limit*
Small Business Subcontracting Plan (Other than Small Businesses)	No limit

1. Volume I: Non-Price Proposal

Factor I - Technical Submission

Offerors shall submit a technical proposal that demonstrates a comprehensive understanding of, and the capability to provide, the required products identified in the Statement of Work (SOW).

Offerors must demonstrate technical capability and experience directly related to the design, integration, testing or production of the required products.

Offerors shall include the valid National Institute of Standard and Technology (NIST) certification number and tested configuration to meet the encryption requirements per the SOW.

The Technical Submission is limited to 12 pages

Factor II: Past Performance

To demonstrate its past performance, the offeror shall identify up to three (3) of its most relevant contracts within the past (5) five years from the solicitation closing date. In addition, performance data will only be assessed for those references demonstrating at least one (1) year of completed performance within the five (5) years prior to the closing date of this solicitation. Offerors shall provide a detailed explanation demonstrating the relevance of the contracts to the requirements of the solicitation.

For purposes of this solicitation, a contract is defined as a single contract or a single task order placed under an IDIQ contract, a Blanket Purchase Agreement (BPA), or a Federal Supply Schedule. If an offeror submits the IDIQ contract, FSS contract, or BPA itself as a reference, then the offeror must identify: a) the total number of orders actually awarded to the offeror during the ordering period in the past five (5) years from the solicitation closing date; and b) the total dollar amount of those orders. The total dollar amount shall be the sum of the orders actually awarded, not the contract maximum or ceiling. Orders are defined as either delivery orders (DOs), task orders (TOs), technical direction letters (TDLs), and/or technical area tasks (TATs) placed under an IDIQ or BPA or Federal Supply Schedule contract. Orders must also meet the recency requirements stated above: each order must have been performed within five (5) years of the solicitation closing date. If an offeror submits an IDIQ contract, FSS contract, or BPA itself as a reference, the ordering period must be at least one (1) year in length and any ordering period prior to the five-years before the solicitation date will not be considered. If an IDIQ contract, FSS contract, or BPA itself is submitted as a reference, the offeror shall state the specific experience claimed from the orders (i.e. the offeror shall identify what work was actually completed on the orders and the relevance to this solicitation, as opposed to generically stating that orders were merely awarded). A Past Performance example that does not provide the level of detail required may not be evaluated. If the offeror includes delivery orders/task orders as past performance, the offeror shall state specifically what work was performed by the offeror under the delivery order/task order and the dates during which work was performed.

If a proposed subcontractor's past performance is provided as part of the three (3) of its most relevant contracts or efforts, the percentage and type of work to be done by the subcontractor on the solicitation requirement must be stated. The offeror's submittal shall also detail clearly the aspects of the work in the solicitation that the subcontractor is proposed to perform. A Past Performance example which does not detail clearly the aspects of the work in the solicitation that the subcontractor is proposed to perform may not be evaluated.

If the prime offeror or intended subcontractor/partner submits a past performance example in which it served as a subcontractor, the prime/sub/partner shall detail clearly the work that it performed and the magnitude (dollar value) of that subcontracted work only. A Past Performance example that does not differentiate between the overall contract effort and the subcontractor effort may not be evaluated.

The past performance of subcontractors who will be performing major or critical aspects of the solicitation will be considered as highly as a prime contractor's past performance.

Failure of offerors to provide the required information and level of specificity may result in the contract reference not being evaluated.

With respect to joint ventures, the procuring activity will consider work done individually by each member of the joint venture as well as any work done by the joint venture itself previously. Joint venture references must meet the temporal requirements described in addendum FAR 52.212-1 (within five years and a year of completed performance).

Additionally, if a joint venture member submits a past performance reference, the joint venture member shall detail clearly the work that it performed in that effort and the magnitude (dollar value) of that work. A reference that does not differentiate between the overall contract effort and the joint venture member's effort for that reference may not be evaluated. The past performance of a joint venture member who will be performing major or critical aspects of the solicitation will be considered as highly as the joint venture's past performance.

The references provided will be evaluated in the aggregate in order to allow offerors who may not have the entire scope and magnitude of the requirement, under one individual contract, to still be considered relevant if past performance with the full scope of the requirement can be demonstrated within the allotted number of references as described above.

The offeror shall complete a "Past Performance Information Form" for each reference submitted. The form is an attachment to the solicitation.

In addition to the information requested above, offerors shall contact their past performance references and request that each reference complete the Past Performance Report Form attached to the solicitation and e-mail the completed survey form directly to Borui Tang at borui.z.tang.civ@us.navy.mil and Joseph Caltagirone at joseph.p.caltagirone3.civ@us.navy.mil by the DUE DATE IN THIS SOLICITATION. The Government reserves the right to consider past performance report forms received after the due date of the solicitation and to contact references for verification or additional information.

****The Past Performance submission is limited to 12 pages****

Factor III - Small Business Participation Plan

Offerors (large and small businesses) **SHALL** provide a Small Business Participation Plan. Small Business Participation Plans shall address the following:

- The extent to which small business concerns are specifically identified;
- The extent of commitment to use small business concerns (for example, enforceable commitments will be weighted more heavily than non-enforceable ones);
- Past performance of the offerors in complying with requirements of the clauses at FAR 52.219-8, Utilization of Small Business Concerns, and 52.219-9, Small Business Subcontracting Plan.
- The extent of participation of small business concerns in terms of the value of the total acquisition.

Volume II: Price Proposal

Factor IV: Price

This factor shall include completed solicitation documents and additional supporting documentation described below:

- A complete and signed SF1449 (Solicitation/Contract/Order for Commercial items) and executed copy of Amendments, if applicable, completed by the offeror;
- A completed and signed Page 1 of the solicitation and a completed and signed Page 1 of any amendments.
- Unless completed in the System for Award Management, the offeror shall complete the solicitation's representations, certifications and other statements of offerors.
- Proposals shall include Firm-Fixed-Unit-Pricing for the **estimated** delivery quantities identified in Attachment 1 - Seed Delivery Order Pricing Spreadsheet, along with any applicable discount terms. All dollar amounts shall be rounded to no more than two (2) decimal places.
- Submission of other than certified cost or pricing data is required. Prospective offerors may provide commercial catalog pricing and/or redacted invoices from other customers for items comparable to those required under this solicitation. The Government reserves the right to request additional information as necessary to determine that proposed prices are fair and reasonable in accordance with FAR 15.4033.

Note: The Seed Delivery Order pricing is requested solely for the purpose of assessing price fair and reasonableness and evaluating offerors' understanding of the requirements. Future delivery orders will be competed among the multiple award IDIQ awardees.

****The Price submission is not page limited, but is strictly limited to Price information.****

Volume III: Small Business Subcontracting Plan (Other than Small Businesses)

Large business offerors **SHALL** submit a Subcontracting Plan in accordance with FAR 19.704, Subcontracting Plan Requirements. Offerors are permitted to submit a master subcontracting plan so long as it is created in accordance with FAR 19.701 and FAR 19.704(b). Subcontracting Plans are not required from small business offerors. It is the goal of this solicitation that prime contractors subcontract with small businesses to the maximum extent practicable. For other-than-small (large) prime contractors, the Small Business Subcontracting Plan goals shall be expressed in terms of whole dollars and percentages based on total planned subcontracting dollars. Of the total planned subcontracting dollars, the Small Business Subcontracting Plan shall include goals for Small Businesses, Small Disadvantaged Businesses, Woman-Owned Small Businesses, HubZone Small Businesses, Veteran Owned Small Businesses and Service-Disabled Veteran-Owned Small Business. The Government will consider prior achievement of small business subcontracting plan goals as well as the proposed dollar values and percentages related to this solicitation. **Small businesses are not required to submit a subcontracting plan, but are required**

to submit a small business participation plan.

****The small business subcontracting plan submission is not page limited, but is strictly limited to small business subcontracting information.****

The completion and submission of the above items will constitute an offer (proposal) and will indicate the offeror's unconditional assent to the terms and conditions of this RFP and any attachments and/or exhibits hereto. Alternate proposals are not authorized. Objections to any of the terms and conditions of the RFP will constitute a deficiency (see FAR 15.001) which will make the offer unacceptable. An offeror may correct a deficiency only through discussions (see FAR 15.306(d) and 15.307).

Evaluation - Commercial Products and Commercial Services

FAR Clauses Incorporated by Full Text

52.212-2 Evaluation-Commercial Products and Commercial Services.

(Nov 2021)

Evaluation-Commercial Products and Commercial Services (Nov 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

The Government intends to award a Firm-Fixed-Price (FFP), multiple award Indefinite Delivery, Indefinite Quantity (IDIQ) contract with up to five (5) awards as a result of this solicitation in accordance with FAR Part 12, Part 15 and Subpart 16.5. Award will be made to the offerors whose proposals are most advantageous to the Government under the selection criteria set forth in this solicitation. The Government intends to evaluate proposals and award a contract based on initial proposals. Therefore, the offeror's initial proposal should contain the offeror's best terms from a non-price and price standpoint. However, the Government reserves the right to establish a competitive range and conduct discussions if later determined by the PCO to be necessary. Offerors simply providing general statements or paraphrasing/parroting the SOW in whole or in any part may result in a rating of unacceptable. The Government reserves the right to award a contract to other than the lowest priced offeror; award a contract without discussions; or award a contract after discussions, whichever is in the best interest of the Government.

The Government intends to award no more than five (5) FFP IDIQ contracts to the responsible offeror whose proposal represents the best value after evaluation in accordance with the factors in the solicitation by utilizing the Tradeoff Source Selection process. The Offeror's proposal shall be in the form prescribed, and shall contain a response to each of the areas identified in FAR 52.212-1 Addendum of the solicitation.

All proposals will be reviewed for timeliness. If the proposal is received after the closing date and does not meet the criteria for "late proposals" in the solicitation, the proposal will not be opened. Timely proposals will be reviewed for compliance to the solicitation. If the proposal is not compliant to the solicitation, it will not be evaluated, and the offeror will be notified that the proposal is non-responsive.

The evaluation of proposals will consider the Non-Price Proposal to be significantly more important than the Price Proposal. Within the Non-Price Proposal, Factors I, II and III are in descending order of importance. Offerors receiving a rating of "Unacceptable" for Factor I are considered un-awardable and will not be further evaluated.

To be awardable, offerors must be evaluated to have, a Factor I - Technical Submission rated as "Good" (or higher), Factor II - a Past Performance Confidence Assessment rating of "Satisfactory Confidence" (or higher) AND Factor III - Small Business Participation Plan rated as "Acceptable" (or higher). Award will be made to no more than five (5) offerors with the highest ratings and the lowest priced offerors as those offerors represent the best value for the Government.

If no proposals are evaluated with a Factor I - Technical Submission rated as "Good" (or higher), Factor II - Past Performance rated as "Satisfactory Confidence" (or higher) AND Factor III - Small Business Participation Plan rated as "Acceptable" (or higher), the Contracting Officer shall make an integrated assessment best value award decision where non-price is considered to be significantly more important than price from among the offerors.

Offerors simply providing general statements or paraphrasing/parroting the SOW in whole or in any part may result in a rating of unacceptable. Offerors should be aware that a complete understanding as to technical, price, and all terms and conditions of the proposed contract must exist between the offeror and the Government at the conclusion of exchanges, if held. Material changes to proposals submitted in any final proposal revisions, if made, may not be subject to further discussions and may render the offer unacceptable to the Government. All offeror and team member/subcontractor information must be incorporated into one coherent proposal to be considered complete.

Although price is not the most important evaluation factor, it has the potential to become more significant during the evaluation process. The degree of importance of price will increase with the degree of equality of the proposals in relation to the other factors on which selection is to be based. The importance of price will also increase when a proposal's price is so significantly high as to diminish the value to the Government that might be gained under the other aspects of the proposal. If, at any stage of the evaluation, all offerors are determined to have submitted equal, or virtually equal, non-price proposals, price could become the factor in determining which offerors shall receive the award.

Volume I: Non-Price Proposal Evaluation Criteria

Factor I - Technical Submission

The Technical factor evaluation will be based on each Offeror's response to the requirements of solicitation Addendum FAR 52.212-1, Instructions to Offerors. In the execution of the evaluations, both the offeror's approach to meeting the Government's requirements as defined in the solicitation and the risk related to its proposed approach will be assessed.

The purpose of the technical factor is to assess the offeror's proposed approach to satisfy the Government's requirements. The evaluation of risk is related to the assessment of the offeror's proposed technical submittal. Risk, as it pertains to source selection, is the potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an offeror's proposed approach to achieving the technical factor involves risk of disruption of schedule, increased cost or degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance. Risk will be considered in the evaluation of the technical factor. The overall assigned rating for technical risk will be the technical risk rating, defined in table identified as "Technical Risk Table 2" below.

The Technical Submission Factor will result in one Technical Submission rating detailed in the rating table identified as "Combined Technical/Risk Table 1". Offers simply providing general statements or paraphrasing/parroting the SOW in whole or in any part may receive a rating of unacceptable.

Note: A rating of "Marginal" for any factor means that the offeror's proposal is not awardable without a change or changes to the offeror's proposal. A proposal which includes a "Marginal" rating is not eligible for award if award is made on initial offers and will not be further evaluated unless discussions are in the best interest of the Government. Offerors that receive a "Marginal" rating are considered to be susceptible to correction if the Contracting Officer determines that a discussion is appropriate and said discussion is conducted.

Note: Offerors receiving a rating of "Unacceptable" for any factor will not be considered for an award and will not be further evaluated.

Factor II - Past Performance:

The past performance evaluation factor assesses the degree of confidence the Government has in an offeror's ability to meet the contract's requirements based on the quality of a demonstrated record of recent and relevant performance. There are three aspects to the past performance evaluation: recency, relevancy, and quality. These are combined to establish a single performance confidence assessment rating for each offeror.

Past Performance Relevancy: The past performance relevancy ratings are defined in table identified as "Past Performance Relevancy Ratings Table 3" below. Regarding relevancy, each past performance reference under each offeror's Past Performance submission will be evaluated to determine its scope and magnitude relative to the instant requirement. The following definitions will apply to this evaluation:

- **Scope:** Experience in the areas defined in the SOW.
- **Magnitude:** The measure of the similarity of the dollar value of actually performed work that exists between the PWS and the offeror's referenced contracts during the stated five-year period established by the solicitation. In addition, performance data will only be assessed for those references demonstrating at least one (1) year of completed performance prior to the closing date of this solicitation. If an offeror submits an IDIQ contract, FSS contract, or BPA itself as a reference, only the dollar value of orders actually awarded in the past five (5) years will be considered when assessing magnitude. The contract maximum or ceiling will not be considered in the magnitude assessment.

The aggregate of each offeror's past performance references in terms of scope and magnitude will result in the assessed overall relevance of that offeror's past performance, and will result in a relevancy rating as outlined in "Past Performance Relevancy Ratings Table 3" below.

Past Performance Quality: The third aspect of the past performance evaluation is to establish the overall quality of the offeror's past performance. The Government will review all past performance information collected and determine the quality of the offeror's performance, including general trends and usefulness of the information, and will incorporate this into the performance confidence assessment.

Past Performance Confidence Assessment: The overall assigned rating for past performance will be the Past Performance Confidence Assessment rating, defined in table identified as "Past Performance Confidence Assessment Ratings Table 4" below. The assignment of this rating will be based on the overall quality of the recent and relevant past performance and will also consider the source of the information, the context of the data, and general trends in the offeror's performance. The quality of performance under a past performance reference that has no relevance to the instant requirement will not be considered in the overall assessment of past performance confidence. Evaluation will focus only on work already performed. Work yet-to-be performed and work not reflecting one year of completed performance by the solicitation closing date will not be considered.

If the offeror's aggregated past performance is determined to be not relevant as defined in the solicitation, then the quality of the offeror's past performance will not be evaluated through a confidence assessment and the past performance factor will be rated as "Neutral Confidence." If an offeror's aggregate past performance is determined to be relevant, then each past performance reference under the offeror's past performance submission that contributed to the determination of aggregate relevance (i.e., each reference that is rated at least somewhat relevant) will be evaluated to determine the quality of the offeror's performance under that reference. The quality of performance on contract references that are rated "Not Relevant" is not evaluated even when the overall past performance is found to be "Relevant." In determining the rating for the past performance factor, past performance of greater relevancy will have more influence on the past performance confidence assessment than past performance of lesser relevancy.

In the case of offerors for which there is no information on past contract performance or where past contract performance information is not available, the offeror may not be evaluated favorably or unfavorably on the past performance factor. In this case, the offeror's past performance is unknown and assigned a performance confidence rating of "Neutral Confidence." Although an offeror that lacks recent, relevant past performance may not be rated favorably or unfavorably with regard to past performance, the Government may determine that a "Substantial Confidence" or "Satisfactory Confidence" past performance rating provides better value to the Government than a "Neutral Confidence" past performance rating.

In order to evaluate Past Performance, the Government may also utilize existing data sources, including the Contractor Performance Assessment Reporting System (CPARS), the Federal Awardee Performance and Integrity Information System (FAPIIS), the Electronic Subcontract Reporting System (eSRS), or other databases; communication with points of contact in the offeror's customer's organization, which could include private sector requirements and contracts personnel, Administrative Contracting Officers, Defense Contract Management Agency (DCMA) personnel, Procuring Contracting Officers, Contracting Officer's Representatives, and other Government activity requirements personnel. The Government may verify past performance information. The Government may contact some or all of the references provided, as appropriate, and may collect information through questionnaires, telephone interviews, and existing data sources. The Government reserves the right to obtain information for use in the evaluation of past performance from any and all sources, including sources outside of the Government. This information will be used for the evaluation of past performance.

The past performance factor evaluation and past performance confidence assessment rating is separate and distinct from the Contracting Officer's responsibility determination. The assessment of the offeror's past performance will be used as a means of evaluating the relative capability of the offeror and other competitors to successfully meet the requirements of the solicitation.

Note: A rating of "Limited Confidence" for the past performance factor means that the offeror's proposal is not awardable without a change or changes to the offeror's proposal. A proposal that includes a "Limited Confidence" rating is considered to be susceptible to correction if the Contracting Officer determines that a discussion (pursuant to FAR 15.306) is appropriate and said discussion is conducted. A rating of "No Confidence" for the past performance factor means that the offeror's proposal is not awardable, is not susceptible to correction, and will not be further evaluated.

Factor III - Small Business Participation Plan:

The Contracting Officer will evaluate the Small Business Participation Plan as follows:

- The extent to which small business concerns are specifically identified;
- The extent of commitment to use small business concerns (for example, enforceable commitments will be weighted more heavily than non-enforceable ones);
- Past performance of the offerors in complying with requirements of the clauses at FAR 52.219-8, Utilization of Small Business Concerns, and 52.219-9, Small Business Subcontracting Plan.

- The extent of participation of small business concerns in terms of the value of the total acquisition.

The offeror's small business participation plan factor will be assigned a rating shown in the "Small Business Participation Plan Ratings Table 5" below.

Volume II: Price Proposal Evaluation Criteria

Factor IV: Price:

The Offeror's proposed price will be evaluated on the basis of price reasonableness. The evaluation method is at the discretion of the Contracting Officer. The price fair and reasonableness ratings are defined in table identified as "Price Fair and Reasonableness Acceptable/Unacceptable Ratings Table 6" below. Evaluation will be conducted on a price fair and reasonableness acceptable/unacceptable basis as part of a bestvalue evaluation. Actual pricing for future delivery orders will be separately competed among multiple award IDIQ awardees.

Volume III: Small Business Subcontracting Plan:

Small Business Subcontracting Plan (for other-than-small businesses only). **This is NOT an evaluation factor.** The Small Business Subcontracting Plan requirement is mandatory for award to a large business. Each large business offeror's Small Business Subcontracting Plan will be reviewed in accordance with FAR clause 52.219-9 Alt II (Deviation), Small Business Subcontracting Plan. The plan will be reviewed for acceptability. The apparently successful offeror shall negotiate an acceptable subcontracting plan with the contracting officer prior to award. Failure to negotiate an acceptable subcontracting plan will make the offeror ineligible for award. Negotiation of the small business subcontracting plan is not considered discussions and will only occur with the apparent successful offeror. The plan will be incorporated into any resultant contract(s).

Rating Tables

Combined Technical/Risk Table 1

These ratings will be used in the evaluation of Factor I - Technical Submission.

Adjectival Rating	Description
Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.

Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Unacceptable	Proposal does not meet requirements of the solicitation and, thus, contains one or more deficiencies and is unawardable, and/or risk of performance is unacceptably high.

Technical Risk Table 2

These ratings will be used in the evaluation of Factor I - Technical Submission.

Rating	Description
Low	Proposal may contain weakness/weaknesses which have low potential to cause disruption of schedule, increased cost, or degradation of performance. Normal contractor emphasis and normal Government monitoring will likely be able to overcome any difficulties.
Moderate	Proposal contains a significant weakness or combination of weaknesses which may have a moderate potential to cause disruption of schedule, increased cost, or degradation of performance. Special contractor emphasis and close Government monitoring will likely be able to overcome any difficulties.
High	Proposal contains a significant weakness or combination of weaknesses which is likely to have high potential to cause significant disruption of schedule, increased cost, or degradation of performance. Special contractor emphasis and close Government monitoring will unlikely be able to overcome any difficulties.
Unacceptable	Proposal contains a deficiency or a combination of significant weaknesses that causes an unacceptable level of risk of unsuccessful performance.

Past Performance Relevancy Ratings Table 3

These ratings will be used in the evaluation of Factor II - Past Performance.

Rating	Description

Very Relevant	Present/past performance effort involved essentially the same scope and magnitude of effort this solicitation requires.
Relevant	Present/past performance effort involved similar scope and magnitude of effort this solicitation requires.
Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort this solicitation requires.
Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort this solicitation requires.

Past Performance Confidence Assessment Ratings Table 4

These ratings will be used in the evaluation of Factor II - Past Performance.

Rating	Description
Substantial Confidence	Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The offeror may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.
No Confidence	Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will be able to successfully perform the required effort.

Small Business Participation Plan Ratings Table 5

These ratings will be used in the evaluation of Factor III - Small Business Participation Plan.

Adjectival Rating	Description
Outstanding	Proposal indicates an exceptional approach and understanding of the small business objectives.
Good	Proposal indicates a thorough approach and understanding of the small business objectives.
Acceptable	Proposal indicates an adequate approach and understanding of small business objectives.
Marginal	Proposal has not demonstrated an adequate approach and understanding of the small business objectives.
Unacceptable	Proposal does not meet small business objectives.

Price Fair and Reasonableness Acceptable/Unacceptable Ratings Table 6

These ratings will be used in the evaluation of Factor IV - Price.

Rating	Description
Acceptable	Proposal clearly meets the minimum requirements of the solicitation
Unacceptable	Proposal does not clearly meet the minimum requirements of the solicitation

DEFINITIONS:

Strength - an aspect of an offeror's proposal with merit or will exceed specified performance or capability requirements to the advantage of the Government during contract performance.

Significant Strength - an aspect of an Offeror's proposal with appreciable merit or will exceed specified performance or capability requirements to the considerable advantage of the Government during contract performance.

Weakness - a flaw in the proposal that increases the risk of unsuccessful contract performance.

Significant Weakness - a flaw that appreciably increases the risk of unsuccessful contract performance.

Deficiency - a material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level.

Risk - (as it pertains to source selection) The potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an offeror's proposed approach to achieving the technical factor or sub-factor may involve risk of disruption of schedule, degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance.

Uncertainty - aspect of a non-price factor proposal for which the intent of the offer is unclear (e.g., more than one way to interpret the offer or inconsistencies in the proposal indicating that there may have been an error, omission, or mistake)

(b) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

Addendum to Evaluation - Commercial Product and Commercial Services

Offeror Representations and Certifications - Commercial Products and Commercial Services

Addendum to Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-7	System for Award Management.	Nov 2024		
52.216-27	Single or Multiple Awards.	Oct 1995		
52.204-29	Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures.	Dec 2023		
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	Sep 2024		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.225-7966	Prohibition Regarding Russian Fossil Fuel Business Operations-Representation (Deviation 2024-O0006, Revision 1)	Mar 2024	Deviation 2024-O0006	Mar 2024
252.225-7973	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems####Representation. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024

FAR Clauses Incorporated by Full Text

52.212-3	Offeror Representations and Certifications-Commercial Products and Commercial Services. (Alternate I)	(Oct 2025)	Alternate I	(Feb 2024)
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Alternate I (FEB 2024). As prescribed in 12.301 (b)(2), add the following paragraph (c)(12) to the basic provision:

(12) (Complete if the offeror has represented itself as disadvantaged in paragraph (c)(5) of this provision.)

- ☐ Black American.
- ☐ Hispanic American.
- ☐ Native American (American Indians, Eskimos, Aleuts, or Native Hawaiians).
- ☐ Asian-Pacific American (persons with origins from Burma, Thailand, Malaysia, Indonesia, Singapore, Brunei, Japan, China, Taiwan, Laos, Cambodia (Kampuchea), Vietnam, Korea, The Philippines, Republic of Palau, Republic of the Marshall Islands, Federated States of Micronesia, the Commonwealth of the Northern Mariana Islands, Guam, Samoa, Macao, Hong Kong, Fiji, Tonga, Kiribati, Tuvalu, or Nauru).
- ☐ Subcontinent Asian (Asian-Indian) American (persons with origins from India, Pakistan, Bangladesh, Sri Lanka, Bhutan, the Maldives Islands, or Nepal).
- ☐ Individual/concern, other than one of the preceding.

52.229-11	Tax on Certain Foreign Procurements-Notice and Representation.	(Jun 2020)
TAX ON CERTAIN FOREIGN PROCUREMENTS-NOTICE AND REPRESENTATION (JUN 2020)		

(a) Definitions. As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

United States person as defined in 26 U.S.C. 7701(a)(30) means

- (1) A citizen or resident of the United States;
- (2) A domestic partnership;
- (3) A domestic corporation;
- (4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and
- (5) Any trust if-
 - (i) A court within the United States is able to exercise primary supervision over the administration of the trust; and
 - (ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [Offeror shall select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

52.225-18 Place of Manufacture.

(Aug 2018)

PLACE OF MANUFACTURE (AUG 2018)

(a) *Definitions.* As used in this provision-

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except-

- (1) FPSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;

- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

(b) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

- (1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or
- (2) ☐ Outside the United States.

(End of provision)

52.233-2 Service of Protest.

(Sep 2006)

Service of Protest (Sept 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from Joseph Caltagirone at joseph.p.caltagirone3.civ@us.navy.mil.

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference.

(Feb 1998)

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

FAR Clauses: <https://www.acquisition.gov/browse/index/far>

DFARS Clauses: <https://www.acquisition.gov/dfars>

(End of provision)

52.252-5 Authorized Deviations in Provisions.

(Nov 2020)

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any DFARS (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.225-7000 Buy American--Balance of Payments Program Certificate.

(Feb 2024)

BUY AMERICAN-BALANCE OF PAYMENTS PROGRAM CERTIFICATE-BASIC (FEB 2024)

(a) *Definitions.* "Commercially available off-the-shelf (COTS) item," "component," "critical component," "critical item," "domestic end product," "foreign end product," "qualifying country," "qualifying country end product," and "United States," as used in this provision, have the meanings given in the 252.225-7001, Buy American and Balance of Payments Program-Basic clause of this solicitation.

(b) *Evaluation.* The Government-

(1) Will evaluate offers in accordance with the policies and procedures of Part 225 of the Defense Federal Acquisition Regulation Supplement; and

(2) Will evaluate offers of qualifying country end products without regard to the restrictions of the Buy American statute or the Balance of Payments Program.

(c) *Certifications and identification of country of origin.*

(1) For all line items subject to the Buy American and Balance of Payments Program-Basic clause of this solicitation, the Offeror certifies that-

(i) Each end product, except those listed in paragraphs (c)(2) or (3) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c)(4) of this provision contains a critical component or a critical item; and

(ii) For end products other than COTS items, components of unknown origin are considered to have been mined, produced, or manufactured outside the United States or a qualifying country. For those end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(2) The Offeror certifies that the following end products are qualifying country end products:

Line Item Number	Country of Origin
_____	_____
_____	_____
_____	_____

(3) The following end products are other foreign end products, including end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Line Item Number	Country of Origin (If known)	Exceeds 55% Domestic Content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____

(4) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component or a critical item (see Federal Acquisition Regulation 25.105).

Domestic end products containing a critical component or a critical item:

Line Item Number _____

[List as necessary]

(End of provision)